From: Nicholas Scarr <nscarr@quantlogic.com>
To: Claims <Claims@qlaims.com>
CC: Andy Lyne <Andy.Lyne@qlaims.com>, Sarah Romain <sarah.romain@qlaims.com>, Louisa Scarr <scarrlouisa@gmail.com>
Date: Friday 28 November 2025 at 16:47
Subject: Re: For the attention of Simon Fenwick - 1 Riverside Cottages

Many thanks for the update Simon.

I spoke to Andy who said you intervened to get our AA payment through as it had got lost in the system for some reason. Thank you! Davies rang for the bank details this afternoon.

Good luck on Tuesday. I hope the discussion goes well and look forward to hearing the outcome. I also gather from Andy that there are a number of other discussions going on which sound positive.

I am grateful for all of your efforts.

Kind regards,

Nicholas

Nicholas Scarr
Sent from my iPhone

On 27 Nov 2025, at 15:47, Claims <Claims@qlaims.com> wrote:

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Dear Nicholas

Thank you for your email, likewise it was good to speak to you directly regarding your claim and in addition thank you for the detailed summary of the current position, this really helps me position the key points to Lloyds from your perspective.

Your feedback on the claim so far is taken constructively and thank you for the kind words for Andy who I know has been striving on a daily basis to further your claim, please be assured that both Sarah & I have been pushing Lloyds for speedier resolution and now Adam Clutterbucks report has been shared we can push again with Lloyds for their updated views.

By way of an update, I now have time with Lloyds Tuesday afternoon to

further raise our concerns on your claim and the below points, trust assured Andy, Sarah & I are doing everything within our power to assist breaking the logjam as you so adequately reference. We will look to update you as soon as we can after discussing further with Lloyds next week.

Kind regards

Simon

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Simon Fenwick
Chief Operations Officer

Mob: +44 (0)7967 223910

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<https://qlaims.com/privacy-policy/> to align with the General Data Protection Regulation. All our communications are also compliant with the Privacy and Electronic Communications Regulation

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From: Nicholas Scarr <nscarr@quantlogic.com>
Sent: Thursday, November 27, 2025 10:56
To: Claims <Claims@qlaims.com>
Cc: Andy Lyne <Andy.Lyne@qlaims.com>; Sarah Romain <sarah.romain@qlaims.com>; Louisa Scarr <scarrlouisa@gmail.com>
Subject: For the attention of Simon Fenwick - 1 Riverside Cottages

Dear Simon,

It was good to speak with you, and I am grateful for the help you have provided on this claim. I am writing to summarise the position as clearly as possible, because after nine months with no reinstatement, we urgently need to break the current deadlock.

As set out in my position paper, a lawful reinstatement requires the MacLennan waterproofing design. MacLennan were originally involved because our builder identified serious concerns about hydrostatic pressure and the risks of reinstating without a proper system. Their view has always been unequivocal.

To ensure independence, and with your assistance in securing insurer agreement, we appointed Adam Clutterbuck. Adam regularly acts for insurers. His conclusions were clear: given the geology, hydrostatic pressure, site drainage and the issues described in his report, effective waterproofing is essential, and in his professional opinion there is no viable alternative. When combined with MacLennan's specification and the builder's concerns, it is unavoidable that the property cannot lawfully or safely be reinstated without the correct waterproofing.

For absolute clarity, this is not betterment. The waterproofing solution is not an upgrade or discretionary enhancement. It is a legal and technical necessity. Both MacLennan and Adam have been explicit about this. In addition, the commonly-suggested slurry or cementitious system simply cannot function in this environment: it cannot withstand sustained hydrostatic pressure, cannot relieve water behind finishes, cannot be

maintained once installed, and does not provide the required gas resistance. Such a system would fail both the technical requirements and the legal obligations of BS 8102 and the Building Regulations. Reinstating the property without the correct waterproofing would therefore be unlawful, as it would knowingly result in a defective structure from the moment it is completed.

I am trying to give this one final collaborative push with your support and senior involvement at Qlaims. If the matter cannot be resolved, escalation will be unavoidable. Danny Chambers MP has already indicated that he is prepared to raise the issue at senior level within Lloyds Bank if needed.

I must also address the Alternative Accommodation (AA) situation. Despite nine months of insurer-side delay and no progress on reinstatement, we have repeatedly been warned about possible AA restrictions. At the same time, November's rent remains unpaid, and December's rent is also outstanding. This combination is extremely difficult to reconcile with the duties owed to policyholders, particularly where vulnerability is involved. If we can unlock reinstatement now, completion remains realistic by March or April; if not, it will inevitably slip into June or beyond, prolonging the disruption unnecessarily.

I want to make a broader point, and I hope it is taken in the constructive spirit intended. What we have experienced does not appear to be the failing of any individual, but rather a systemic failure in senior regulatory oversight within the insurance industry. As a former Lloyd's broker, I find the gap between expected standards and what has occurred here deeply troubling. The impact of such systemic failings falls squarely on policyholders, particularly vulnerable ones.

Finally, I want to acknowledge the exceptional efforts of Andy Lyon, who has worked tirelessly on our behalf. But despite everything he has tried, neither he nor I have been able to break the logjam. Senior intervention is now essential.

After nine months with no reinstatement, unresolved waterproofing, unresolved scope, unresolved contents, unpaid rent and ongoing AA pressure, this situation cannot continue. I am therefore writing to ask for your help in ensuring the reinstatement proceeds lawfully, safely and without further delay.

Kind regards,
Nicholas

Sent from my iPad